PETROS MARIMO
versus
MAUREEN GURUPIRA

HIGH COURT OF ZIMBABWE
PHILLIPS J
HARARE: 4 November 2025 & 22 JUNE 2026

L Charangawa and T Mashingaidza, for the plaintiff
S V Chava, for the defendant

SUMMONS FOR SHARING OF PROPERTY

PHILLIPS J:

Introduction

The Plaintiff issued summons for the sharing of property which was acquired during the subsistence of an unregistered customary law union on the basis of unjust enrichment. The parties' union dates back from 1998 and three children were born of the union, all of whom are now majors.

During the Pre-Trial Conference, the parties successfully agreed on how to distribute their movable assets, however, no admissions were made by either party and the parties failed to reach consensus regarding the immovable properties acquired during the subsistence of the union. Although separated, the parties are still residing together at the Manresa property pending the decision of this court. The Plaintiff contends that fairness dictates awarding the Defendant the Stand number 23825 Ruwa (herein referred as the Ruwa property) while he retains the Stand number 309 Manresa Park, Harare, (herein referred to as the Manresa property). The Defendant maintains that she is entitled to a 50% share of both properties.

Relief sought

The Plaintiff's summons and declaration pray for the following:

a) *An Order for sharing the property acquired by the parties during the subsistence of their Unregistered Customary Law Union in terms of paragraph 8 above.*
b) *Costs of suit on a legal practitioner and client scale.*

Issues for determination

The parties held a round table meeting on 27 November 2024 and the minutes were uploaded. The agreed issues for trial were as follows:

1. *Whether or not the Defendant should be awarded 50% share of stand number 309 Manresa Park, Harare and 50% share of Stand Number 23825 Ruwa?*

The Plaintiff's case

The plaintiff testified that he is a qualified Engineering Surveyor and that the parties entered into the union sometime in 1998; they had three children together with the defendant but he had two other children from his previous union whilst the Defendant also had children from her previous union. He told the court that in total, the Defendant was looking after five (5) children. He further stated that during the subsistence of the union between the parties, he worked on various projects both in Zimbabwe and outside Zimbabwe. He stated that through the income earned from such contracts, he was able to acquire two immovable properties, namely the Ruwa Property and the Manresa Property. The former property is held under a council cession and was acquired in July 2010 whilst the latter has a Deed of Transfer in his name, this was acquired in December 2010 according to the plaintiff. The plaintiff told the court that both properties were in his name because he solely contributed to their acquisition and development.

The Plaintiff testified that he contributed both directly and indirectly to the acquisition and development of the two properties whilst the Defendant only made indirect contribution by taking care of the family. While he directly purchased both properties solely from his earnings, he also contributed indirectly by lending his professional expertise as an Engineering Surveyor to the construction of the Manresa Property by personally designing the Manresa house and its site plans, he prepared the bill of quantities, supervised the purchase of appropriate building materials, and oversaw the entire construction process which construction activities were only carried out in his presence during his visits from work.

The Plaintiff's position is:

> "*in recognition of the Defendant's limited indirect contributions during the union, it would be just and equitable for her to be awarded the Ruwa Property, while he retained ownership of the Manresa Property. This is because he solely contributed to the acquisition and development of the properties since he was gainfully employed and that the Defendant's indirect contributions cannot equate to the 50% share being claimed on both properties*"[i].

The Defendant's case

The defendant, who bore the burden of proof testified that she is 51 years old and met the plaintiff in 1998 whilst she was managing her father's business which included a hair salon.

She explained that they have not lived as husband and wife since 2020 but only became aware of the Plaintiff's intention to separate when she received Summons for sharing of property in 2023, despite having nursed his dying mother in between. The defendant acknowledged that the parties would have separated in 2020.

The defendant testified that the parties would decide on issues together and that the Plaintiff would take the Defendant anywhere he would have heard of residential stands which she would choose from. Furthermore, she hired, paid, cooked for builders, paid council rates, liaised with engineers, and handled council approvals at every stage throughout the construction processes whilst the Plaintiff was working outside Zimbabwe. Her evidence was that she also safeguarded building materials at the Manresa Property during the construction period when the residential area was still bushy and rampant with thieves and that sometimes she would receive bricks at night since the delivery trucks preferred travelling at night. She disagreed that the plaintiff was involved in the construction of the house, asserting that they would contract a registered engineer.

The Defendant explained how the Plaintiff would only come to Zimbabwe for a maximum of ten days after the lapse of which she would be left alone whilst builders finish off that particular building stage. She stated that although the plaintiff would send US$100 for the family's upkeep, there was a time he stopped and she had to start a baking course. She also told the court that in 2017 – 2018 when the Plaintiff was not employed, they started operating a tuckshop at their Manresa house for the benefit of everyone since there was no other source of income during that period. Further that whilst the plaintiff was out of work the Defendant attended to the tuckshop and salon businesses as well as the household duties which involved taking care of five children, two of whom are not her own.

The defendant explained to the court that it would be unfair for her to receive the Ruwa property whilst the plaintiff took the Manresa property because the rooms were not suitable for her to occupy because they are small to the extent that even her bed cannot fit through the doors. She told the court that the tenant using the rooms are local builders constructing houses in that same area with few belongings, which makes it easier for them to

live in the rooms meant for storage. Having to move to the Ruwa property would affect her standard of living considering the difference in sizes of the two properties and extent of developments on both properties.

The defendant maintained that her indirect contributions entitled her to a fifty-percent share of both respective properties although she did not consider having the properties registered in both of the parties' names because she did not suspect that the Plaintiff would betray her yet they were working for their joint benefit and for the benefit of their family. The defendant also requested the court to consider her age and that the prospects of getting employment were now low.

The Law

The Honourable Judge CHIRAWU-MUGOMBA J discusses this subject in *Helliate Jeke* v *Witness Zembe* HH237/18 stating as follows:

> "*There is a plethora of decisions on the sharing of property in unregistered customary law unions that ought to guide legal practitioners who wish to file such claims before the courts – see Chapeyama v Matende and Anor; Chivise v Dimbwi Feremba v Matika; Mandava v Chasweka; Matibiri v Kumire; Mtuda v Ndudzo ; Jengwa v Jengwa ; Marange v Chiroodza ; Mabuto v Bhila and Ntini v Masuku."*

CHIRAWU-MUGOMBA J goes on to state that:-

> "***The Matrimonial Causes Act*** *[Chapter 5:13] does not apply to an unregistered customary law union due to the definition in s 2 of an action for divorce, judicial separation or nullity of marriage; appropriate court and marriage. Although the High Court has inherent jurisdiction, it was not appropriate for the plaintiff to bring an action seeking an order for dissolution of an unregistered customary law union as if it is a marriage*."

In *Mashingaidze* v *Mugomba* HH 3/99 GWAUNZA J (as she was then) stated as follows:

> "*However, while I support the view that a proven unregistered customary union should be treated like any other marriage when it comes to dissolution and the division of assets jointly acquired by the parties during the subsistence, such view is currently not supported by the law. All that can be said is that time has surely come to actively consider reviewing the situation especially in the light of the increasing and not inconsiderable recognition being extended to unregistered customary law unions*."

In the same judgment, GWAUNZA J (as she was then) discussed unjust enrichment and set out the requirements the plaintiff would need to set out or prove in order to succeed in an action based on unjust enrichment. Citing BARTLETT J (as he was then) in *Industrial Equity* v

Walker 1996 (1) ZLR (H) at 208 which had been cited by one of the parties, she restated as follows:

> *"(a) the defendant must be enriched; (b) the enrichment must be at the expense of another (i.e. the plaintiff must be impoverished and there must be causal connection between the enrichment ant the impoverishment; (c) the enrichment must be unjustified; (d) the case must not come under the scope of one of the classical enrichment actions; (e) there should be no positive rule of law which refuses an action to the impoverished person*."

In that case GWAUNZA J (as she was then) declined the applicability of the *Industrial Equity* (*supra*) saying that the claim in that case had been commercial and went on to state as follows:

> "*Emphasis in order to justify a claim for unjust enrichment is placed on restoration of the benefit gained by the defendant. In the present case the benefit enjoyed by the defendant has not been clearly defined except in terms of contribution in cash and kind. The contribution in cash was for a common good and far from benefitting the defendant only, was also of benefit to the plaintiff herself*."

In that case it involved a marriage of 17 years wherein both movable and immovable property had been acquired, GWAUNZA J (as she was then) found the evidence produced lacking the strength to prove the unjust enrichment because the facts therein disclosed:

> "*a cause of action…which …amounts to a claim based on universal partnership…[despite] the absence of direct documentary evidence of any agreement…*" The Honourable Judge ruled that the "*respective contributions were as intricately interwoven as can only happen in a relationship of the nature the parties had. The contributions are thus not cable of precise division*."

The defendant husband in that case was ordered to pay the plaintiff wife half the current market value of the disputed immovable property. I find this principle applies to the facts of the current case.

In the same judgment, it was stated further, with regards to the wife's contribution:-

> "*For the 17 years they lived together, the parties' relationship had in all respects but one the characteristics of any normal marriage relationship based on love, trust and mutuality of interest and benefit. Like in any other marriage relationship, there was a division of labour and responsibilities which, contrary to the defendant's contention should not be seen as having been mutually exclusive. Nor should the contribution of one be weighed and valued more than the others. The plaintiff as a working partner whose wages competed well with those of the defendant, contributed directly through purchase of food, clothing and other household requirements. She supported the defendant and his children during the periods he was unemployed, especially the 11 months preceding the dissolution of their customary union. She contributed indirectly through the performance of domestic chores for the family and bringing up, in part, defendant's children. It should be accepted that while it may be difficult*

> *to place a value on plaintiff's contribution in the form of domestic work, this is not to say such contribution is any less important… the parties' contribution…, although different, was equal in value and measure*."

I do not differ in my evaluation of the present case.

Application of Law to the Facts

The evidence shows that whilst the plaintiff husband worked mostly outside the country on various financially lucrative contracts, the defendant wife looked after the household and enabled him to focus on earning money. She even looked after his other two children (despite the limited time she got help from a relative of his that stayed at the home for a short period of time) and nursed his dying mother. The period from 1998 to 2020 spans 22 years. The defendant obviously gave her "good years" to building the plaintiff's asset register only for him to seek to give her the one he does not find so attractive. There is no justice in that. Neither do the facts prove unjust enrichment as alleged by the plaintiff.

The amount of time invested in that customary union, the children of the union whom the plaintiff does not dispute were looked after during the plaintiff's periods of absence, the helping with the construction and waiting on the bricks for the Manresa property surely should be counted for something. If anyone it is the plaintiff who would be unjustly enriched by the time and effort of the defendant. The defendant is entitled to share equally in both properties.

Disposition

1. A decree of divorce be granted.
2. The Plaintiff is hereby granted the following movable property:
   a. Toyota Land Cruiser
   b. UD Truck
   c. Deep freezer
   d. Hisense Television set
3. The Defendant is hereby granted the following movable property:
   a. Honda Fit
   b. Toyota Starlet

c. Upright refrigerator

d. Dining room suite

e. Kitchen unit

f. a set of black sofas

g. One king size bed

h. One 4 plate burner

i. Kitchen utensils

j. The balance of the household goods.

4. The Defendant be and is hereby awarded 50% share of stand number 309 Manresa Park, Harare.

5. The Defendant be and is hereby awarded 50% share of Stand Number 23825 Ruwa.

6. i. Both stand number 309 Manresa Park, Harare and Stand Number 23825 Ruwa shall be valued by real estate agent agreed to by both parties within three months of the granting of this court order.

   ii. Should the parties fail to agree on the real estate agent; one shall be appointed by the Registrar of the High Court within a month of their failure to agree.

   iii. Both parties are to share the costs of the evaluation of both the aforementioned properties.

7. The Plaintiff shall be entitled to buy out the defendant's interest in 309 Manresa Park, Harare within ten months of the granting of this order failing which the property may be sold and the proceeds shared equally between the parties.

8. Each party to bear its own costs.

PHILLIPS J: ……

Muvingi|*Mugadza*, Plaintiff's Legal Practitioner

Legal Resources Foundation, Defendant's Legal Practitioner